INTERNATIONAL MARITIME ORGANIZATION

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FACILITATION COMMITTEE
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Agenda item 16

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ANY OTHER BUSINESS

National Maritime Transport Facilitation Programmes and Committees

Note by the Secretariat

SUMMARY	
Executive summary:	This document outlines the Organization's guidance on national maritime transport facilitation programmes and committees and invites the Committee to decide on the way forward.
Strategic Direction, if applicable:	SD 5
Output:	No related provisions
Action to be taken:	Paragraph 13
Related document:	FAL.5/Circ.2

Background

1 The movement of ships, goods and people is subject to a wide range of government controls. The way that these controls are implemented may have a direct impact on the efficiency of maritime transport. Within this context, the stated purpose of the Convention on Facilitation of International Maritime Traffic, 1965, as amended (the FAL Convention) is "to facilitate maritime transport by simplifying and minimizing the formalities, documentary requirements and procedures associated with the arrival, stay and departure of ships engaged on international voyages".

2 As these formalities, requirements and procedures are intended to address a range of issues, including but not limited to, customs and border controls, maritime security, public health, and protection of the marine environment, they are under the purview of a number of different governmental and non-governmental authorities. Coordination, cooperation and communication between these authorities are necessary to maximize their effectiveness and to reduce their negative impact on maritime traffic.

3 The need to establish national and regional committees in order to promote and coordinate measures to improve the facilitation of maritime transport was recognized by the

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framers of the FAL Convention in 1965. Resolution 3 of the International Conference on Facilitation of Maritime Travel and Transport, London, 9 April 1965 stated:

> "The International Conference on Facilitation of Maritime Travel and Transport, 1965:
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> RECOGNIZING the value of national and regional committees for the encouragement of measures of facilitation which will advance the purposes of the Convention on Facilitation of International Maritime Traffic;
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> RESOLVES
>
> (1) to invite Contracting Governments to create national and regional committees where such committees do not already exist in order to encourage the recommendation of measures of facilitation, their adoption and their implementation in the States concerned;
>
> (2) further to invite such Governments to notify the Secretary-General of the Inter-Governmental Maritime Consultative Organization (now IMO) of the existence of the creation of any such committees."

Development of Recommended Practices 7.11 and 7.12

4 FAL 18 (12 to 16 December 1988), having considered proposals from the Secretariat (FAL 18/3/4) on the establishment of national maritime transport facilitation committees and national maritime transport facilitation programmes, agreed to two recommended practices and adopted FAL.5/Circ.2 on *Guidelines for the establishment, membership and operation of national facilitation committees.* A copy of FAL.5/Circ.2 is set out in the annex.

5 FAL 19 (30 April to 4 May 1990) adopted resolution FAL.2(19) on *Amendments to the Annex to the FAL Convention*, which included what eventually became Recommended Practices 7.11 and 7.12[1].

6 The current text of the Recommended Practices reads:

> Recommended Practice 7.11. "Each Contracting Government should, where it considers such action necessary and appropriate, establish a national maritime transport facilitation programme based on the facilitation requirements of this annex and ensure that the objective of its facilitation programme should be to adopt all practical measures to facilitate the movement of ships, cargo, crews, passengers, mail and stores, by removing unnecessary obstacles and delays".

[1] Resolution FAL.2(19) adopted Recommended Practices 5.13 and 5.14. These were renumbered as 6.11 and 6.12 by resolution FAL.3(21) (1 May 1992) and renumbered as 7.11 and 7.12 by resolution FAL.7(29) (10 January 2002).

Recommended Practice 7.12. "Each Contracting Government should establish a national maritime transport facilitation committee or a similar national coordinating body, for the encouragement of the adoption and implementation of facilitation measures, between government departments, agencies, and other organizations concerned with, or responsible for, various aspects of international maritime traffic, as well as port authorities and shipowners."[2] [3]

Compliance with Recommended Practices 7.11 and 7.12

7 Article VIII of the FAL Convention refers to compliance with Standards and Recommended Practices. Paragraph 3 of article VIII states that "Contracting Governments are urged to bring their formalities, documentary requirements and procedures into accord with the recommended practices insofar as practicable. As soon as any Contracting Government brings its own formalities, documentary requirements and procedures into accord with any recommended practice, it shall notify the Secretary-General thereof". Paragraph 4 of article VIII states that "The Secretary-General shall inform the Contracting Governments of any notification made to him in accordance with the preceding paragraphs of this article.

8 Pursuant to paragraphs 3 and 4 of article VIII above, a database on "Notifications pursuant to article VIII of the FAL Convention" has been established in the public area of the Global Integrated Shipping Information System (GISIS). [4] This may be accessed via the module on Facilitation of International Maritime Traffic (https://gisis.imo.org/Public/FAL/Notifications/Default.aspx).

9 No notifications with respect to Recommended Practices 7.11 and 7.12 have been entered in GISIS.

10 FAL.5/Circ.2 situates national maritime transport facilitation committees within the wider context of national facilitation committees and programmes[5] and sets out basic guidelines for the establishment, membership and operation of national maritime facilitation committees. However, the information contained therein is nearly 30 years old and may benefit from updating in the light of Member States' experience and developments since it was written.

11 Such developments include, but are not limited to, new Standards and Recommended Practices in the FAL Convention; security measures including the Special measures to enhance maritime security (SOLAS chapter XI-2 and the ISPS Code), the ILO/IMO Code of

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2 The original text of what was at that time Recommended Practice 6.12 was amended by resolution FAL.5(24) (11 January 1996).

3 A note in the original text stating "In establishing a national maritime transport facilitation committee or similar coordinating body, Contracting Governments are invited to take into account the guidelines presented in FAL 5/Circ.2" was moved to the Explanatory Manual to the FAL Convention, adopted by FAL 36 (6 to 10 September 2010).

4 Circular Letter No.3476 contains information on the GISIS FAL module for reporting and giving global access to notifications to IMO pursuant to article VIII of the FAL Convention by Contracting Governments on Standards and Recommendations Practices

5 Guidance and resources for wider trade facilitation bodies can be found on the United Nations Conference on Trade and Development (UNCTAD) website at: http://unctad.org/en/DTL/TLB/Pages/TF/Committees/NTFBs_Resources.aspx

Such guidance includes "National Trade Facilitation Committees – Moving towards Implementation", a joint guide by the International Trade Centre (a joint agency of the World Trade Organization and the United Nations), UNCTAD, and the United Nations Economic Commission for Europe (UNECE), including the United Nations Centre for Trade Facilitation and Electronic Business ((UN/CEFACT). Guidance and resources on facilitation for other modes of transport bodies include the International Civil Aviation Organization's Facilitation Manual (ICAO Doc. 9957) and related documents, see: https://www.icao.int/Security/FAL/ANNEX9/Pages/Publications.aspx

practice on security in ports, and the SAFE Framework of Standards to secure and facilitate global trade; safety issues that impact on port operations, for example container verification of gross mass of containers; and environmental issues including the provision of port reception facilities in compliance with MARPOL.

12 Recent facilitation-related technical cooperation activities have highlighted the lack of national maritime facilitation committees and programmes in some Member States and the need for more comprehensive and up-to-date guidance. These States may benefit from the experience of other Member States that do have such committees and programmes, particularly if this was in the form of best practice guidance.

Action requested of the Committee

13 The Committee is requested to note the information provided and to:

.1 request Contracting Governments that have national maritime facilitation committees and programmes, or similar arrangements in accordance with Recommended Practices 7.11 and 7.12, to update the "Notifications pursuant to article VIII of the FAL Convention" database GISIS;

.2 decide if the development of best practice guidance on national maritime facilitation committees and programmes would be of benefit to Member States;

.3 decide whether to request the Secretariat to collect and collate information from Member States on national maritime facilitation committees and programmes, for consideration at a future session of the Committee, as appropriate;

.4 subject to decisions with respect to sub-paragraphs .2 and .3 above, invite Contracting Governments that have national maritime facilitation committees and programmes to share information on:

.1 terms of reference for national maritime facilitation committees;

.2 composition and methods of work of national maritime facilitation committees;

.3 contents of national maritime facilitation programmes;

.4 interaction between national maritime facilitation committees and wider national facilitation committees, maritime security bodies and port-level committees; and

.5 any national legislation adopted to give legal force to the national maritime facilitation programme; and

.5 if appropriate, request the Secretariat to develop the corresponding database in the facilitation module in GISIS, to collect the information listed in sub-paragraph 4.

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ANNEX

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RECOMMENDATIONS ON THE ESTABLISHMENT OF NATIONAL FACILITATION COMMITTEES

Guidelines for the establishment, membership and operation of national facilitation committees

1 The IMO Facilitation Committee has considered the importance of establishing national facilitation committees in order to promote and co-ordinate measures to improve the facilitation of maritime transport between Contracting Parties to the 1965 FAL Convention and to reduce the number of differences from the standards and recommended practices in the annex to the FAL Convention, notified to the Organization in accordance with article VIII of the Convention.

2 The usefulness of national and regional facilitation committees was already recognized at the adoption of the Convention, when the Conference in 1965 adopted resolution 3 which deals with this matter and reads as follows:

"Resolution 3

The creation of national and regional committees

The International Conference on Facilitation of Maritime Travel and Transport, 1965:

RECOGNIZING the value of existing national and regional committees for the encouragement of measures of facilitation which will advance the purposes of the Convention on Facilitation of International Maritime Traffic;

RESOLVES

(1) to invite Contracting Governments to create national and regional committees where such committees do not already exist in order to encourage the recommendation of measures of facilitation, their adoption and their implementation in the States concerned;

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(2) further to invite such Governments to notify the Secretary-General of the Inter-Governmental Maritime Consultative Organization* of the existence or of the creation of any such committees."

3 National facilitation committees have been established in many IMO Member States and have proven an effective means of implementing facilitation programmes. Other States are also contemplating establishing their own committees. The purpose of this circular is to suggest guidelines for the establishment, membership and operation of national facilitation committees.

4 In this connection, it is important to pay attention to the broader aspects of facilitation in order to ensure that maritime transport has its place in the overall national facilitation programme so as not to overlap with facilities provided for other modes of transport and to ensure that there are no gaps in the national programmes. Other international organizations have adopted similar instruments. For instance, ICAO already has guidelines included in Annex 9 of its Convention (chapter 8, section E and appendix 7) and further guidance is given in ICAO resolutions and circulars. The World Tourism Organization (WTO) has drafted a facilitation convention to be submitted for adoption at a diplomatic conference in 1989, which provides for the establishment of a national facilitation committee where none is in existence, or another similar body, to facilitate the travel of tourists, "irrespective of the means of transport that they use".

5 The establishment of national facilitation programmes and committees is also recommended for surface transport by the Inland Transport Committee of the Economic Commission for Europe (ECE), its Committee on the Development of Trade and the Working Party on Facilitation of International Trade Procedures (WP.4). It is also recalled that the ECE participates in a joint facilitation programme (FALPRO) with UNCTAD and the General Agreement on Tariffs and Trade (GATT) which recommends the establishment of national facilitation committees for surface transport in their Member States.

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* The name of the Organization was changed to the "International Maritime Organization" on 22 May 1982.

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6 Whether States should have a national facilitation committee covering all modes of transport (with sub-committees covering particular modes), or a separate national facilitation committee for each mode, is a matter for individual Governments to decide. It is necessary, however, to ensure that the pertinent provisions of the guidelines are drafted in such a way as to avoid duplication and provide for co-ordination with other transport modes and other disciplines involved in the implementation of the facilitation programme.

7 It is, accordingly, suggested including in the Annex to the FAL Convention, in the future, one new recommended practice regarding the establishment of national facilitation committees and the objectives to be pursued by such committees and, furthermore, the inclusion of a recommended practice to draw attention to guidelines on national facilitation committees. The recommended practices which are agreed in principle are reproduced below:

> "Recommended Practice - Each Contracting Government should, where it considers such action necessary and appropriate, establish a national maritime transport facilitation programme based on the facilitation requirements of this Annex, and ensure that the objective of its facilitation programme is to adopt all appropriate measures to facilitate and expedite the movement of ships, cargo, crews, passengers, mail and stores, and to remove and prevent unnecessary obstacles and delays.
>
> Recommended Practice - Each Contracting Government should establish a national maritime transport facilitation committee or a similar co-ordinating body, for the encouragement of measures of facilitation activities between departments, agencies, and other organizations of the Government concerned with, or responsible for, various aspects of international maritime traffic as well as with ports, shipowners or operators*".

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* In establishing a national maritime transport facilitation committee or similar co-ordinating body, Contracting Governments are invited to take into account the guidelines presented in FAL 5/Circ.2.

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8 It is also suggested to agree on the following guidelines for the establishment of national maritime facilitation committees, the wording of which is closely aligned with what has recently been agreed for inclusion in Annex 9 of the ICAO Convention:

"GUIDELINES FOR THE ESTABLISHMENT, MEMBERSHIP AND OPERATION OF A NATIONAL MARITIME TRANSPORT FACILITATION COMMITTEE

The following guidelines outline suggested terms of reference, membership and methods of operation of a national maritime transport facilitation committee.

Terms of reference

Where a national maritime transport facilitation committee (or a similar co-ordinating body) is formed, its functions should broadly be:

.1 to implement the national facilitation programme or programmes;

.2 to review questions of policy in relation to clearance formalities applied to international maritime transport services;

.3 to make recommendations to the departments, competent authorities and other organizations concerned with the national facilitation programme or programmes; and

.4 to keep the departments, competent authorities, and other organizations concerned, informed of significant developments in the field of international maritime traffic in so far as they affect operations into and out of the Contracting Government.

Membership

A national maritime transport facilitation committee should be composed of senior officials representing the main interests concerned with

facilitation, including the following, as required: maritime transport authorities, government clearance agencies (immigration, customs, consular, passport and visa, public health, agriculture, security and narcotics control), other government agencies concerned with facilitation (such as postal services, tourism and trade departments), port authorities, shipowners and operators, freight forwarders and shipping agents.

Operation

.1 It is suggested that the facilitation committee meets on a regular basis. It is desirable that the site of the meetings be rotated between the premises of the different government agencies involved.

.2 Whenever possible, periodic inspection tours of ports within the national territories and abroad should be arranged for members of the committee.

.3 Representatives of shipowners and operators should be encouraged to attend the meetings and to submit their co-ordinated approach to current facilitation problems, together with proposed solutions.

.4 Whenever appropriate, the facilitation committee should consider the establishment of sub-committees to study particular facilitation problems (e.g. cargo). Such sub-committees should have a balanced representation similar to that of the committee.

.5 States should inform the Organization of the work of their facilitation committees, so that this information can be distributed to other Governments".

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